

COMMITTEE ON JUDICIARY AND ELECTIONS
SENATE AMENDMENTS TO H.B. 4070
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 10, chapter 25, article 1, Arizona Revised
3 Statutes, is amended by adding section 10-3203.01, to read:

4 10-3203.01. Incorporation prohibited

5 NOTWITHSTANDING ANY OTHER LAW, THE COMMISSION MAY NOT INCORPORATE A
6 CORPORATION UNDER THIS CHAPTER IF AN OFFICER, DIRECTOR OR TRUSTEE OF THE
7 CORPORATION HAS BEEN CONVICTED OF ANY OF THE FOLLOWING OFFENSES:

8 1. SEX TRAFFICKING AS DEFINED IN SECTION 13-1307.

9 2. TRAFFICKING OF PERSONS FOR FORCED LABOR OR SERVICES AS DEFINED
10 IN SECTION 13-1308.

11 3. CHILD SEX TRAFFICKING AS DEFINED IN SECTION 13-3212.

12 4. ANY SUBSTANTIALLY SIMILAR OFFENSE UNDER THE LAWS OF ANY OTHER
13 STATE OR THE UNITED STATES.

14 Sec. 2. Section 12-722, Arizona Revised Statutes, is amended to
15 read:

16 12-722. Trafficking of persons; civil liability;
17 applicability; remedies; joint and several
18 liability; definitions

19 A. A person who engages in OR FACILITATES the trafficking of a
20 person or who intentionally or knowingly benefits from participating in OR
21 FACILITATING a venture that traffics another person is liable to the
22 person trafficked for damages that arise from the trafficking of that
23 person by the person or venture.

24 B. It is not a defense to liability under this section that the
25 person was acquitted or has not been prosecuted for or convicted of an
26 offense included in title 13 or has been convicted of a different offense,
27 or of a different type or class of offense, for the conduct that is
28 alleged to give rise to liability under this section.

1 C. This section applies to any legal entity that is governed by
2 title 10 or 29.

3 D. Notwithstanding titles 10 and 29, if a legal entity is found
4 responsible pursuant to this section, a shareholder, member or partner of
5 that entity is jointly and severally liable with the entity to the person
6 trafficked for damages that arise from the trafficking of that person if
7 the person demonstrates that the shareholder, member or partner caused the
8 entity to be used to traffic that person for the direct personal benefit
9 of the shareholder, member or partner.

10 E. A claimant who prevails under this section:

11 1. Shall be awarded actual damages, including damages for mental
12 anguish even if an injury other than mental anguish is not shown, court
13 costs and reasonable attorney fees.

14 2. In addition to an award under paragraph 1 of this subsection,
15 may recover exemplary damages.

16 F. The rights and remedies provided in this section supplement any
17 other rights and remedies provided by law, including common law rights.

18 G. A person who engages in **OR FACILITATES** the trafficking of a
19 person or who intentionally or knowingly benefits from participating in **OR**
20 **FACILITATING** a venture that traffics another person and is found
21 responsible under this section or other law for any amount of damages
22 arising from the trafficking is jointly liable with any other person found
23 to be liable for the entire amount of damages arising from the
24 trafficking.

25 H. For the purposes of this section:

26 [1. "FACILITATES" MEANS ACTING WITH KNOWLEDGE THAT ANOTHER PERSON
27 IS COMMITTING OR INTENDS TO COMMIT AN UNLAWFUL ACT, A PERSON KNOWINGLY
28 PROVIDES THE OTHER PERSON WITH MEANS OR OPPORTUNITY FOR THE COMMISSION OF
29 THE UNLAWFUL ACT.]

30 [1.] [2.] "Person" has the same meaning prescribed in section
31 13-105.

32 [2.] [3.] "Traffics another person" or "trafficking of a person"
33 means conduct that constitutes an offense under section 13-1306, 13-1307,
34 13-1308, 13-3206 or 13-3212.

35 Enroll and engross to conform

36 Amend title to conform

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